

		When ruling on a motion to expunge lis pendens, the court must award the prevailing party its reasonable attorney's fees and costs incurred in making or opposing the motion, unless the court finds either that: (1) the non-prevailing party acted with substantial justification; or (2) other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Such an award is to be made against the losing party only, not counsel. (<i>Doyle v. Superior Court</i> (1991) 226 Cal.App.3d 1355, 1359.) The court finds there was no substantial justification for the filing of the lis pendens. Since Respondent has not opposed this motion, the court reduces the "anticipated fees" from 4 hours to 1 hour. The court awards Petitioner reasonable attorney's fees of \$4,130.00 (\$350p/h x 11.8 hrs) payable by Respondent within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to serve notice of this ruling and/or may elect to prepare, file, and serve a proposed order after hearing.
01437433	Compas - Trust	TENTATIVE RULING Case: Compas - Trust 01437433 Calendar No: 7 Date: 09/02/26 MOTIONS TO COMPEL FURTHER RESPONSES TO INTERROGATORIES AND MOTION DEEM REQUESTS FOR ADMISSION ADMITTED (ROAs 32, 34, 35) Petitioner Patricia Compas ("Petitioner") brings the following motions: (1) motion for an order compelling answers to form interrogatories, set one (ROA 32); (2) motion for an order compelling answers to special interrogatories, set one (ROA 35); and (3) motion for an order deeming requests for admission admitted. The evidence before the court is that Petitioner's counsel propounded the aforementioned discovery on 9/3/25. Responses to the discovery requests were initially due 10/8/25. Five extensions were requested and granted.